

26SMCV00234 26SMCV00234

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-26

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Case Number: 26SMCV00234 Hearing Date: August 26, 2026 Dept: M

CASE NAME: Niksefat v. Colby

Springs, LLC, et al.

CASE NO.: 26SMCV00234

MOTION: Motion

for Preliminary Injunction

HEARING DATE: 8/26/2026

Legal

Standard

Under Code of Civil Procedure ("CCP")

section 526(a), a preliminary injunction may be issued in the following cases:

1)

When it appears by the complaint that the plaintiff is entitled to the relief

demand, and the relief, or any part thereof, consists in restraining the

commission or continuance of the act complained of, either for a limited period

or perpetually.

2)

When it appears by the complaint or affidavits that the commission or

continuance of some act during the litigation would produce waste, or great or

irreparable injury, to a party to the action.

3)

When it appears, during the litigation, that a party to the action is doing, or

threatens, or is about to do, or is procuring or suffering to be done, some act

in violation of the rights of another party to the action respecting the

subject of the action, and tending to render the judgment ineffectual.

4) When pecuniary compensation would

not afford adequate relief.

5)

Where it would be extremely difficult to ascertain the amount of compensation

which would afford adequate relief.

6)

Where the restraint is necessary to prevent a multiplicity of judicial

proceedings.

7) Where the obligation arises from

a trust.

In determining whether to issue a

preliminary injunction, the trial court considers two factors: 1) the

reasonable probability that the plaintiff will prevail on the merits at trial

(CCP §526(a)(1)); and 2) a balancing of the "irreparable harm" that the moving

party is likely to sustain if the injunction is denied compared to the harm

that the non-moving party is likely to suffer if the court grants a preliminary

injunction. (CCP §526(a)(2); 14859 Moorpark Homeowner's Assn. v. VRT Corp.

(1998) 63 Cal.App.4th 1396, 1402.) "A preliminary injunction is an interim

remedy designed to maintain the status quo pending a decision on the

merits." (Major v. Miraverde Homeowners

Assn. (1992) 7

Cal.App.4th 618, 623.) "[A] cause of action must exist before injunctive

relief may be granted." (Id.)

The court's ruling on a preliminary

injunction is not an adjudication of the merits, is not a trial, and does not

require a statement of decision. (Cohen v. Board of Supervisors,

(1985) 40 Cal.3d 277, 286.) The judge is not required to state her reasons for

granting or denying a preliminary injunction; a cursory statement is

sufficient. (City of Los Altos v. Barnes, (1992) 3 Cal.App.4th

1193, 1198.) A proposed order must be presented to the judge for signature,

with any required undertaking, within one day after the preliminary injunction is granted, or other time ordered by the judge. (CRC 3.1150(f).)

Analysis

Plaintiff Kathy Niksefat moves for

a preliminary injunction requiring Defendant Colby Springs, LLC, and all

persons acting in concert with it, to maintain accessible parking, unobstructed

access aisles, and reasonably accessible pedestrian circulation routes in

compliance with applicable accessibility laws during the pendency of this

action. Specifically, Defendant would be required to:

1. Maintain accessible parking

areas and adjacent access aisles in a usable and unobstructed condition during

active business operations;

2. Maintain pedestrian circulation

routes serving the property in an unobstructed condition reasonably permitting

safe passage by individuals with mobility impairments;

3. Prohibit placement of tables,

chairs, tents, dining fixtures, restaurant equipment, refrigeration equipment,

electrical cords, barriers, customer seating, or similar items within

accessible parking spaces, access aisles, or pedestrian circulation routes

serving the property;

4. Prevent restaurant operations,

tenant activities, or third-party use of parking and common areas from interfering with accessible parking, access aisles, or pedestrian circulation routes serving the property;

5. Maintain common areas in a

condition permitting reasonably safe and equal access for individuals with mobility impairments during active business operations; and

6. Preserve accessible conditions

required under existing accessibility laws during the pendency of this action.

Plaintiff relies on her claims under

the Unruh Civil Rights Action for the injunction. (Compl., ¶¶ 68-72.) The Unruh

Civil Rights Act provides in relevant part that “all persons within the

jurisdiction of this state are free and equal, and no matter what their . . .

disability . . . are entitled to the full and equal accommodations, advantages,

facilities, privileges, or services in all business establishments of every

kind whatsoever.” (Civ. Code § 51(b).) A “disability” means any mental or

physical disability as defined in Sections 12926 and 12926.1 of the Government

Code. (Civ. Code § 51(e)(1).) A “physical disability” includes, but is not

limited to having any physiological disease, disorder, condition, cosmetic

disfigurement, or anatomical loss that affects a body system and limits a major

life activity. (Gov. Code § 12926(m).)

Anyone

who “denies, aids or incites a denial, or makes any discrimination or

distinction contrary to [Unruh]” is liable for damages and penalties. (Civ.

Code § 52(a).) A business’s violation of a Title 24 California Building

Code regulation can provide a basis for an Unruh cause of action if the

violation prevents disabled persons from enjoying full and equal access. (Californians

for Disability Rights v. Mervyn’s LLC (2008) 165 Cal.App.4th 571,

585-586.) A violation of the right of an individual under the ADA is per se a

violation of the Unruh Act. (Civ. Code, § 51(f).) The ADA prohibits

discrimination on the basis of disability in the full and equal enjoyment of

services, facilities, and accommodations of a place of public accommodation by

any person who owns, leases, or operates a place of public accommodation. (42

U.S.C. § 12182(a).) Discrimination under the ADA includes “a failure to remove

architectural barriers, and communication barriers that are structural in

nature, in existing facilities . . . where such removal is readily achievable .

. . . “ and a failure to provide auxiliary aids and services, unless it would

result in an undue burden. (42 U.S.C. § 12182(b)(2)(A)(iii), (iv).)

Furthermore, whether a facility provides full and equal access is defined in

part by the ADA Accessibility Guidelines. (28 C.F.R. pt. 36, app. A; Chapman v.

Pier 1 Imports (U.S.) Inc. (9th Cir. 2015) 779 F.3d 1001, 1006.)

As an initial matter, the Court does not

consider Plaintiff's requests as mandatory injunctions. "[T]he general rule is that an injunction is

prohibitory if it requires a person to refrain from a particular act and

mandatory if it compels performance of an affirmative act that changes the

position of the parties." (Davenport v. Blue Cross of California, (1997)

52 Cal.App.4th 435, 446.) Courts are generally more "reluctant" to issue a

mandatory injunction, even if they may be granted in proper cases, and subject

to stricter scrutiny on review. (Allen v. Stowell, (1905) 145 Cal. 666,

669; Teachers Ins. & Annuity Assn. v. Furlotti, (1999) 70 Cal.App.4th

1487, 1493.) Here, the requested injunction requests that Defendant cease

blocking access. Defendant's inverse formulation of the injunction does not

change the fact that Defendant would be restrained from acting, rather than

requiring it to take a positive act.

Here, the Court is not persuaded

that Plaintiff has demonstrated a reasonable probability of prevailing on the

merits. First, Plaintiff does not present specific evidence of her disability granting

her standing in this suit. (Niksefat Decl., ¶ 2.) Plaintiff only offers a conclusory

statement that she has a disability which impedes her movement, and that she

has a handicap placard. (Id.) She does not present the handicap placard,

explain when it was issued, why it was issued, and whether it is still active. In any event, while having a handicap placard might further her claim of disability, she does not state her disability with any reasonable specificity. Defendant, for its part, presents similarly conclusory and evasive discovery responses concerning Plaintiff's disability, which raises further doubts as to the validity of her standing. (Abraham Decl., Exs. 1, 2.) Thus, Plaintiff has not met her burden to demonstrate the probability of her standing.

The Court also has concerns with Plaintiff's supporting evidence. As to the parking spaces, some photos show that a restaurant tenant was blocking the handicapped parking by using the handicapped parking as a dining area in January 2026. (Ex. E.) The photos also show that the non-handicapped parking was full at the time. (Id.) However, the cooking equipment and tented seating area is only blocking the non-handicapped parking.

The photos show only one apparent instance of the handicapped parking space having a table obstructing it. (Id.) The photos also show that the handicapped parking spot is not always being used for dining and is still accessible by vehicle.

(See, e.g., Ex. F-2.) In fact, the most recent photos and videos show an unobstructed handicapped parking space. (Ex. J; Supp. Exs. M-X.) While blocking the handicapped parking spot might be a violation of Unruh, the Court is not persuaded that there is a continuing/impending violation to enjoin.

As to the access-aisles, the Court

is not persuaded that the public, including disabled individuals, do not have

reasonable pedestrian access to the businesses on the premises. While some of

the photos show the walkways on the property have at times been partially

obstructed by boxes (see Ex. F-2, H-2), a ladder (Ex. E-2), folding chairs (Ex.

H-1, J-1) and possibly some shopping carts (Ex. F-3), the photographs do not

show that the public is blocked by the purported obstructions. The most recent

photos and videos show clear pathways. (Supp. Exs. M-X.) Moreover, Plaintiff's

testimony does not establish that the walkways were blocked for any appreciable

amount of time, such that a disabled member of the public could not reasonably access

the businesses at the property or would be reasonably deterred from returning.

(Niksefat Decl., ¶¶ 3-8.) Again, Plaintiff only provides conclusory statements

that she observed congestion, narrowed circulation routes, and operational

conditions interfering with her maneuverability, and was deterred from

returning. (Id., ¶¶ 6, 8.) However, the presented objective evidence suggests

otherwise.

Accordingly, the motion is DENIED.